

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2273

By: Miller

AS INTRODUCED

An Act relating to higher education; creating the Oklahoma Department of Transportation Educational Assistance Act; defining terms; establishing grant program for eligible students; providing criteria for eligibility; providing criteria to maintain eligibility; requiring repayment under certain circumstances; permitting both public and private funding of program; directing the Oklahoma Transportation Commission to promulgate rules; creating the Oklahoma Department of Transportation Educational Assistance Revolving Fund; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3234 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. This act shall be known and may be cited as the "Oklahoma Department of Transportation Educational Assistance Act".

B. As used in this act:

1. "Commission" means the Oklahoma Transportation Commission;

2. "Department" means the Oklahoma Department of Transportation;

3. "Eligible degree" means a baccalaureate degree from an institution in a field of study that satisfies the Department's minimum education requirement for an eligible profession;

4. "Eligible profession" means a line of work as defined by rule for which the Department determines there is a need in the Department's workforce;

5. "Eligible Student" means a person who:

- a. is at least eighteen years of age,
- b. has a high school diploma or who has completed General Educational Development (GED) requirements,
- c. is an Oklahoma resident, and
- d. is enrolled in an Oklahoma educational institution;

6. "Graduate program" means a program offered by an Oklahoma educational institution that leads to the award of a master's or doctorate degree;

7. "Oklahoma educational institution" means an institution of higher education within The Oklahoma State System of Higher Education;

8. "Undergraduate program" means a program offered by an Oklahoma educational institution that leads to the award of an associate's or baccalaureate degree;

9. "Workforce development grant program" means the Oklahoma Department of Transportation Educational Assistance Program established pursuant to the provisions of this section.

C. There is hereby created the Oklahoma Department of Transportation Educational Assistance Program to provide assistance to eligible students who enroll in an Oklahoma educational institution and who agree to work for the Department in an eligible profession for the five (5) years immediately following the date of the eligible student's receipt of an eligible degree. The Commission shall prescribe criteria for the selection of applicants under this act. Subject to the availability of funds, the amount of assistance shall be equivalent to the amount of resident tuition, mandatory fees, and academic service fees for courses in which the eligible student is enrolled, not to exceed a maximum of eighteen (18) credit hours each semester.

1. The total amount of assistance provided to an eligible student enrolled in an undergraduate program shall not exceed a maximum of one hundred twenty (120) credit hours in pursuit of an associate's or baccalaureate degree;

2. Subject to the assistance for eligible students enrolled in undergraduate programs being fully funded, assistance shall be provided to an eligible student with a baccalaureate degree enrolled in a graduate program. The total amount of assistance provided to an eligible student enrolled in a graduate program shall not exceed the number of hours required for the completion of a master's degree;

3. Assistance provided pursuant to this section shall be granted without any limitation other than the amount of funds available for the workforce development grant program and the number of eligible students who apply and are selected;

4. No assistance or reimbursement will be provided by the Department for failed course.

D. 1. To be eligible to apply for the workforce development grant program, an eligible student shall complete and file with the Department, on forms prescribed by the Department, a workforce development grant program application and a declaration of intent to obtain an eligible degree and work for the Department for the five (5) years immediately following the date of the eligible student's receipt of an eligible degree;

2. To retain eligibility for the grant program, an eligible student shall:

- a. maintain good academic standing and satisfactory academic progress according to standards of the Oklahoma educational institution in which the eligible student is enrolled,
- b. maintain the requirements for retention and degree completion as established by the Oklahoma educational institution in which the eligible student is enrolled, and

- c. maintain a minimum grade point average of 2.0 on a 4.0 scale;

3. An eligible student seeking assistance pursuant to the provisions of this section shall submit an application on a form prescribed by the Department prior to each semester for which assistance is sought; and

4. The eligible student may be denied continued assistance if the eligible student fails to comply with the provisions of this act.

E. Repayment of a workforce development grant.

1. The Commission may establish conditions under which an eligible student who has received a grant may be required to repay all or part of the grant because the student has withdrawn from or dropped out of the student's institution or has otherwise failed to maintain eligibility for the grant;

2. A student who does not obtain an eligible degree and work for the Department for the five (5) years immediately following the date of the eligible student's receipt of an eligible degree must repay all grants received by the eligible student under this section;

3. An eligible student who has received assistance pursuant to the provisions of this workforce development grant program and who fails to comply with the provisions of this act due to hardship circumstances may request a waiver from repayment;

4. Repayments shall be deposited into the Oklahoma Department of Transportation Educational Assistance Revolving Fund created pursuant to Section 2 of this act; and

5. The Commission shall establish a schedule for installment payments under this section.

F. The Department may accept gifts and grants from any public or private source for the grant program and may also use for that purpose available money credited to the state highway program. All funding received by the Department for this purpose shall be transferred to the Oklahoma Department of Transportation Educational Assistance Revolving Fund.

G. The Oklahoma Transportation Commission shall promulgate rules to implement the provisions of this act.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3235 of Title 70, unless there is created a duplication in numbering, reads as follows:

There is hereby created in the State Treasury a revolving fund to be designated the "Oklahoma Department of Transportation Educational Assistance Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of monies received by the Department and allocated for the grant program. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Transportation for the purpose of providing assistance

to eligible students pursuant to the provisions of Section 1 of this act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 3. This act shall become effective July 1, 2025.

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

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